

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephen DiFiore	Team: Squad #7	CCRB Case #: 201908001	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 09/01/2019 11:55 PM	Location of Incident: White Plains Road and Turnbull Avenue	Precinct: 43	18 Mo. SOL 3/1/2021	EO SOL 10/16/2021	
Date/Time CV Reported Mon, 09/02/2019 12:17 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/10/2019 11:03 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Matthew Kalil	03615	941984	043 PCT
2. POM Felix Rodriguez	07060	954281	043 PCT
3. POM Christian Diaz	21111	958502	043 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Felix Rodriguez	Abuse: Police Officer Felix Rodriguez stopped the vehicle in which § 87(2)(b) was an occupant.	
B.POM Felix Rodriguez	Abuse: Police Officer Felix Rodriguez stopped the vehicle in which § 87(2)(b) was an occupant.	
C.POM Christian Diaz	Abuse: Police Officer Christian Diaz stopped the vehicle in which § 87(2)(b) was an occupant.	
D.POM Christian Diaz	Abuse: Police Officer Christian Diaz stopped the vehicle in which § 87(2)(b) was an occupant.	
E.POM Felix Rodriguez	Abuse: Police Officer Felix Rodriguez threatened § 87(2)(b) with the use of force.	
F.POM Felix Rodriguez	Abuse: Police Officer Felix Rodriguez threatened § 87(2)(b) with the use of force.	
G.POM Felix Rodriguez	Discourtesy: Police Officer Felix Rodriguez spoke discourteously to § 87(2)(b)	
H.POM Felix Rodriguez	Discourtesy: Police Officer Felix Rodriguez spoke discourteously to § 87(2)(b)	
I.POM Christian Diaz	Discourtesy: Police Officer Christian Diaz spoke discourteously to § 87(2)(b)	
J.POM Christian Diaz	Discourtesy: Police Officer Christian Diaz spoke discourteously to § 87(2)(b)	
K.SGT Matthew Kalil	Abuse: Sergeant Matthew Kalil threatened to issue summons to § 87(2)(b) over the phone.	
§ 87(4-b), § 87(2)(g)	§ 87(4-b), § 87(2)(g)	
§ 87(4-b), § 87(2)(g)	§ 87(4-b), § 87(2)(g)	
§ 87(4-b), § 87(2)(g)	§ 87(4-b), § 87(2)(g)	

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b), § 87(2)(g)	§ 87(4-b), § 87(2)(g)	

Case Summary

On September 2, 2019, § 87(2)(b) made the following complaint with the NYPD Internal Affairs Bureau.

No video evidence was received for this case.

On September 1, 2019, at approximately 11:50 p.m., in the vicinity of White Plains Road and Turnbull Avenue in the Bronx, PO Felix Rodriguez and PO Christian Diaz stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were both occupants (**Allegations A, B, C, and D: Abuse of Authority, unsubstantiated**). Upon stopping the vehicle, PO Rodriguez allegedly asked the occupants, “Do you want to fucking die?” (**Allegations E and F: Abuse of Authority, unsubstantiated**). PO Rodriguez also allegedly called the occupants “motherfuckers” and asked, “are you fucking stupid?” and “are you fucking dumb?” (**Allegations G and H: Discourtesy, unsubstantiated**). As the officers left the scene, PO Diaz said “Go kill yourselves” over the police vehicle’s loudspeaker (**Allegations I and J: Discourtesy, substantiated**).

After the incident, § 87(2)(b) called the 43rd precinct stationhouse to ask for more information about the officer who stopped him and his son. After explaining the situation to Sgt. Matthew Kalil, Sgt. Kalil allegedly told him that the occupants were in the wrong and then asked for § 87(2)(b)’s address so that he could issue him a ticket (**Allegation K: Abuse of Authority, unsubstantiated**).

§ 87(4-b), § 87(2)(g)

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Felix Rodriguez stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (B) Abuse of Authority: Police Officer Felix Rodriguez stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (C) Abuse of Authority: Police Officer Christian Diaz stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (D) Abuse of Authority: Police Officer Christian Diaz stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (E) Abuse of Authority: Police Officer Felix Rodriguez threatened § 87(2)(b) with the use of force.

Allegation (F) Abuse of Authority: Police Officer Felix Rodriguez threatened § 87(2)(b) with the use of force.

Allegation (G) Discourtesy: Police Officer Felix Rodriguez spoke discourteously to § 87(2)(b).

Allegation (H) Discourtesy: Police Officer Felix Rodriguez spoke discourteously to § 87(2)(b).

§ 87(2)(b) was the driver of the white Toyota CHR in which his father, § 87(2)(b) was the passenger. PO Christian Diaz and PO Felix Rodriguez, respectively the driver and passenger in vehicle 5110, were responding to a gun run at E Tremont Avenue and Commonwealth Avenue listed on the precinct’s tour 3 resource recap log for September 1, 2019, which was in the direction of where they were turning from Lafayette Avenue going westbound to White Plains Road going northbound (Board Review 01). This information was also noted in PO Rodriguez’s memo book (Board Review 02). § 87(2)(b) said in his statement that his son had a green light. Neither PO Diaz or PO Rodriguez acknowledged who had the light. All parties acknowledged that

the two vehicles almost collided, that the police vehicle's emergency lights were on, and that PO Diaz and PO Rodriguez stopped the vehicle. In their respective CCRB interviews, § 87(2)(b) said that the siren was not on, but PO Diaz said that the lights were on. PO Rodriguez did not say whether the siren was on.

Upon approaching the passenger side of the vehicle, PO Rodriguez allegedly said, "Do you want to fucking die?" but § 87(2)(b) was unsure if PO Rodriguez was threatening him or if he was referring to the potential of someone dying in a car collision that could have resulted from § 87(2)(b) not yielding to the police vehicle. § 87(2)(b) further alleged that PO Rodriguez called the occupants "motherfuckers," and asked, "Are you fucking stupid?" and "Are you fucking dumb?" In his statement, PO Rodriguez denied ever using profanities to either occupant in the vehicle or making any mention of someone potentially dying.

PO Diaz and PO Rodriguez told the occupants that they were responding to an emergency and that they are supposed to yield to emergency vehicles that have their lights activated. PO Diaz had no recollection of PO Rodriguez using any profanities or making any mention of someone dying.

Section 1144 of the VTL says "Upon immediate approach of an authorized emergency vehicle equipped with at least one lighted lamp exhibiting red light visible under normal atmospheric conditions from a distance of five hundred feet to the front of such vehicle ... and when audible signals are sounded from any said vehicle by siren, exhaust whistle, bell, air-horn or electronic equivalent; the driver of every other vehicle shall yield the right of way."

§ 87(2)(g)

§ 87(2)(b) it is recommended that allegations A, B, C, and D be closed as **unsubstantiated**.

§ 87(2)(b) himself was unclear if PO Rodriguez was threatening him by asking if he wants to die. Moreover, PO Rodriguez denied ever making such statements and PO Diaz had no recollection of PO Rodriguez making those statements.

§ 87(2)(g)

§ 87(2)(b) it is recommended that allegations E, F, G, and H be closed as **unsubstantiated**.

Allegation (I) Discourtesy: Police Officer Christian Diaz spoke discourteously to § 87(2)(b).

Allegation (J) Discourtesy: Police Officer Christian Diaz spoke discourteously to § 87(2)(b).

§ 87(2)(b) began recording on his phone as the officers returned to the police vehicle (Board Review 03), but he only captured audio as he did not hold his phone up.

At 00:02 in the recording that § 87(2)(b) provided to the investigation, a voice in the background can be heard saying "Go kill yourselves," after § 87(2)(b) calls one of the officers a "motherfucker." Additionally, § 87(2)(b) reads out the police vehicle number "5-1-1-0," shortly after "Go kill yourselves" is heard. Both § 87(2)(b) and § 87(2)(b) can be clearly heard in the recording as they are relatively close to the phone's microphone. While § 87(2)(b) shouts at the officers, including using several profanities, § 87(2)(b) remains calm during the time that is recorded on the audio.

PO Rodriguez, § 87(2)(g)

§ 87(2)(g), said that the location of the incident is usually busy during the day but not at the time of the incident. PO Diaz had no recollection of whether the area was busy. PO Rodriguez was presented with the recording but denied hearing anyone say, “Go kill yourselves,” in the recording. PO Rodriguez denied that either he or PO Diaz said, “Go kill yourselves,” to either occupant in the vehicle. PO Diaz was also presented with the recording and acknowledged hearing someone say, “Go kill yourself” in the recording but had no recollection of who said it.

Patrol Guide Section 203-10 prohibits “using discourteous or disrespectful remarks” as well as “engaging in conduct prejudicial to good order, efficiency, or discipline of the Department.”

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that allegations I and J be closed as **substantiated**.

Allegation (K) Abuse of Authority: Sergeant Matthew Kalil threatened to issue a summons to § 87(2)(b) over the phone.

After the incident with PO Diaz and PO Rodriguez, § 87(2)(b) called the 43rd precinct desk and spoke with Sgt. Matthew Kalil in order to get more information about the officers who stopped them.

§ 87(2)(b) alleged that after he explained the situation to Sgt. Kalil, Sgt. Kalil informed him that he was in the wrong, and Sgt. Kalil asked him for his address so he could come to his house and give him a ticket.

In Sgt. Kalil’s CCRB interview (Board Review 04), he said that he informed § 87(2)(b) during the call that he could have received a summons for failing to yield to an emergency vehicle and said that he could arrange to have him meet the two officers back at the location to discuss it, but the officers would have been free to issue him a summons if he chose to do so. Sgt. Kalil denied ever threatening to personally issue him a summons or asking § 87(2)(b) for his address.

§ 87(2)(g)

§ 87(2)(b) it is recommended that allegation K be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

§ 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) or § 87(2)(b) have been a party.
- PO Felix Rodriguez has been a member-of-service for six years and has been a subject in one other CCRB complaint and two allegations, none of which were substantiated. § 87(2)(g)
- PO Christian Diaz has been a member-of-service for four years and has been a subject in one other CCRB complaints and two allegations, none of which were substantiated. § 87(2)(b), § 87(2)(g)
- Sgt. Matthew Kalil has been a member-of-service for thirteen years and has been a subject in six other CCRB complaints and ten allegations, none of which were substantiated. § 87(2)(b), § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]

Squad No.: 7

Investigator:	_____	Inv. Stephen DiFiore	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date